THE NCA HUB

Examination Preparation

CANADIAN PROPERTY LAW

PRACTICE QUESTIONS & MODEL ANSWERS

12 Examination-Grade Questions | Complete IRAC Model Answers | Examiner's Guides

NCA Syllabus: Revised for October 2025 | Ziff's 8th ed.

LEGAL NOTICES & HOW TO USE THESE PRACTICE QUESTIONS

These 12 questions are calibrated to the format, mark allocation, and analytical depth of the NCA Canadian Property Law examination. Attempt each question under timed conditions before reading the model answer. The exam is open-book (hard copy only), 3 hours, pass/fail at 50%.

PARAMETER	DETAIL
Format	Open-book. Hard copy only. 3 hours. 100 marks total. Pass = 50%.
Standard Assumptions	(a) Common law RAP applies — no statutory reforms; (b) Transfer without words of limitation = fee simple (entire interest); (c) Two or more persons = tenancy in common unless contrary intention; (d) Adverse possession period = 10 years.
Writing Style	Deploy facts directly in analysis. Identify RELEVANT uncertainty on the facts and in the law — you receive marks for doing so. Consider all plausible alternative arguments even if you are convinced of one answer.
Case Citations	Case name alone is sufficient — no full citations required.

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QUESTION 1 OF 12 — WILL INTERPRETATION

Primary Topic	Will Interpretation — Estates, Conditions, Rule Against Perpetuities
Secondary Topics	Re Walker; Re Taylor; RAP common law test; Blackburn v McCallum; Leonard Foundation; H.J. Hayes v Meade
Difficulty	Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Margaret Osei died in March 2025, a widow. Her will, executed using an online template in 2022, reads in part as follows:

Clause 2: "My cottage on Lakeshore Drive shall go to my daughter Patricia for so long as she uses it as a family residence. If Patricia ceases to use it as a family residence, it shall pass to my son Kwame."

Clause 4: "My investment property at 44 King Street shall be held on trust by my executor for all of my grandchildren who reach the age of 25."

Clause 6: "My art collection shall go to my nephew Carlos, provided that he does not sell any piece of the collection to a person who is not a member of the Osei family. If he attempts to do so, the collection shall revert to my estate."

Clause 8: "The residue of my estate shall go to my children in equal shares."

You are additionally told: Margaret had two children — Patricia (age 45) and Kwame (age 42) — and two grandchildren — Alicia (age 12) and Ben (age 8). All named persons were alive at Margaret's death. Patricia has been using the cottage as her weekend family residence since inheriting it.

YOUR TASK

Fully describe all of the rights in relation to all of the property mentioned above. Identify which clauses or conditions may be challenged as invalid and state whether you believe such challenges would be successful. Identify uncertainty on the facts and in the law. Consider all plausible arguments and plausible alternative outcomes.

EXAMINER'S GUIDE

CLAUSE 2 — COTTAGE:

The words "for so long as she uses it as a family residence" = TEMPORAL LANGUAGE → DETERMINABLE FEE SIMPLE. Estate ends AUTOMATICALLY if Patricia ceases to use it as family residence. Margaret's estate retains a possibility of reverter.

CERTAINTY ANALYSIS (H.J. Hayes v Meade): Is "family residence" sufficiently certain? Arguably certain — a discernible core meaning exists (residential use by family members, not commercial letting). Arguably uncertain — what if Patricia uses the cottage only on occasional weekends? Courts would need to resolve the ambiguity. IDENTIFY AND ARGUE BOTH. On balance the better view is that the condition is sufficiently certain, but this is a genuine uncertainty worth identifying.

KWAME'S INTEREST — EXECUTORY GIFT OVER: Margaret purports to give the interest to Kwame on the condition occurring — this creates a contingent EXECUTORY INTEREST. RAP ANALYSIS: Kwame is alive at Margaret's death (a life in being). His interest must vest (if at all) during Patricia's use of the cottage or on her ceasing to use it — the condition must resolve within Patricia's or Kwame's lifetimes (both lives in being). Kwame's interest is VALID under the RAP.

CLAUSE 4 — INVESTMENT PROPERTY — RAP ANALYSIS:

At Margaret's death: Alicia (12), Ben (8), Patricia (45), and Kwame (42) are ALL lives in being. The trust is for "all grandchildren who reach the age of 25." The class of "grandchildren" is contingent on each grandchild reaching age 25.

WORST CASE SCENARIO: Patricia and Kwame are both alive at Margaret's death and are of presumed childbearing capacity under the common law RAP (the fertile octogenarian principle). They could have additional children born AFTER Margaret's death — afterborn grandchildren who are NOT lives in being at Margaret's death. Worst case: Patricia and Kwame both die immediately after Margaret. An afterborn grandchild is then born (conceived just before their death). That afterborn grandchild must reach 25 — which requires 25 years from birth. But 25 years from birth is more than 21 years after the last measuring life (Patricia or Kwame) died. It is POSSIBLE the interest fails to vest within lives in being + 21 years.

ENTIRE CLASS VOID (all-or-nothing rule): Because the class of beneficiaries ("all grandchildren who reach 25") includes possible afterborn grandchildren who might not vest within the period, and because the class is defined to include those afterborn members, the ENTIRE CLASS GIFT IS VOID under the common law RAP. All of Alicia's and Ben's interests also fail — the all-or-nothing rule prevents saving the interests of the identified members when the class as a whole is struck. No statutory cy-pres applies.

PROPERTY FALLS INTO RESIDUE: The trust under Clause 4 is void. The investment property falls into the residue under Clause 8 — Patricia and Kwame take it as tenants in common in equal shares.

CLAUSE 6 — ART COLLECTION:

This is a CONDITION SUBSEQUENT: Carlos receives the collection absolutely, but the condition may defeat his interest on breach. Is this a valid partial restraint on alienation or void under Blackburn v McCallum?

ARGUMENT FOR VALIDITY (partial restraint): The restriction is limited to transactions with non-family members. Carlos retains the right to sell within the family, to gift pieces, to display them, and to keep them. The restriction serves a legitimate and identifiable purpose. Partial restraints may be valid if reasonable in scope.

ARGUMENT AGAINST VALIDITY (effectively a total restraint): The Osei family constitutes a very limited class of potential buyers. A valuable art collection that can only be sold to family members is practically unmarketable on the commercial market. The restriction is so broad in its commercial effect that it amounts to a practical prohibition on alienation — analogous to the total restraints voided in Blackburn v McCallum.

CONSEQUENCE IF VOID (condition subsequent): Carlos takes the collection FREE of the void condition — in fee simple absolute. If valid: Carlos holds subject to the condition; any attempted non-family sale triggers the right of reversion (or automatic reversion if the clause is interpreted as determinable). Identify this linguistic ambiguity — the language "shall revert" could support either determinable or condition subsequent classification.

CLAUSE 8 — RESIDUE:
Patricia and Kwame in equal shares as TENANTS IN COMMON (exam default: two or more persons = tenancy in common). If Clause 4 fails (RAP), the 44 King Street property falls into the residue — Patricia and Kwame each take one-half.

MODEL ANSWER — QUESTION 1

Clause 2 — The Cottage (10 marks)

ISSUE	The issue is the nature of Patricia's interest in the cottage — whether it is a determinable fee simple, a conditional fee simple, or a fee simple absolute — and the validity and nature of Kwame's interest.

RULE	A DETERMINABLE ESTATE uses temporal words ("while," "so long as," "until") and ends automatically on the limiting event. The grantor retains a possibility of reverter. A CONDITIONAL ESTATE (condition subsequent) uses defeasance words ("but if," "on condition that") and may be cut short by the grantor's election to re-enter. H.J. Hayes v Meade: conditions must be sufficiently certain that a court can determine if they have been breached.

APPLICATION	Because Clause 2 uses the language "for so long as she uses it as a family residence," the limiting words are TEMPORAL — "so long as" — and the estate is a DETERMINABLE FEE SIMPLE, not a conditional fee simple. Patricia's estate continues only while she uses the cottage as a family residence and ends automatically if she ceases to do so. Margaret's estate retains a possibility of reverter. The phrase "family residence" raises a CERTAINTY argument (H.J. Hayes v Meade). The condition is arguably certain — it has an identifiable meaning: the cottage must be used as a residence by Patricia or members of her immediate family. Patricia's current weekend use likely satisfies this. However, the condition is also arguably uncertain: if Patricia uses the cottage only on occasional weekends, does that constitute a "family residence"? What if Patricia rents it out commercially for 10 months and uses it for 2? I identify this as a genuine uncertainty. On balance, the better view is that the condition is sufficiently certain — "family residence" has a discernible core meaning — but the court may need to resolve the ambiguity in context. KWAME'S INTEREST — EXECUTORY GIFT OVER: Because Clause 2 directs that on Patricia's ceasing to use the cottage as a family residence, the cottage "shall pass to Kwame," Kwame holds an EXECUTORY INTEREST that is contingent on Patricia's determinable fee simple ending. RAP ANALYSIS: Kwame's executory interest must vest, if at all, within the perpetuity period. The measuring life is Kwame himself — he is alive at Margaret's death (a life in being). Patricia's determinable fee must end (if at all) while Patricia or Kwame is alive — since the condition relates to Patricia's personal use, the condition must resolve within Patricia's or Kwame's lifetime (both lives in being). Kwame's interest is VALID under the RAP.

CONCLUSION	Patricia holds a DETERMINABLE FEE SIMPLE in the cottage, continuing so long as she uses it as a family residence (subject to a certainty challenge — arguably the condition is sufficiently certain; arguably too vague: identify both). Kwame holds an EXECUTORY INTEREST — valid under the RAP. On Patricia's ceasing to use the cottage as a family residence, the determinable estate ends automatically and the cottage vests in Kwame in fee simple absolute. Patricia is currently using the cottage — the determinable estate is presently continuing.

Clause 4 — Investment Property Trust (10 marks)

ISSUE	The issue is whether the trust for "all of my grandchildren who reach the age of 25" violates the Rule Against Perpetuities, and if so, whether the gift to any grandchildren can be saved.

RULE	COMMON LAW RAP: No contingent interest is valid unless it must vest, if at all, within lives in being at the testator's death plus 21 years. The "worst case" test: if it is POSSIBLE (not merely probable) that any interest in the class might fail to vest within the period → the entire class gift is VOID. No statutory cy-pres or wait-and-see applies on this exam.

APPLICATION	At Margaret's death: Alicia (12) and Ben (8) are the only identified grandchildren — they are lives in being. Their contingent interests (contingent on reaching age 25) must either vest (when they reach 25) or fail (if they die before 25) within their own lifetimes as lives in being. On this analysis, their individual interests appear valid. HOWEVER: Patricia (45) and Kwame (42) are ALSO alive at Margaret's death — they are lives in being whose reproductive capacity creates the RAP problem. Under the common law RAP, Patricia and Kwame are presumed capable of having more children (the fertile octogenarian principle applies to anyone alive, regardless of age or probability). They could have afterborn grandchildren born AFTER Margaret's death — those afterborn children are NOT lives in being. WORST CASE SCENARIO: Patricia and Kwame both die immediately after Margaret's death. An afterborn grandchild is then born (born just after Patricia or Kwame dies). That afterborn grandchild must reach 25 — but 25 years from their birth is more than 21 years after the last measuring life (Patricia or Kwame) died. It is POSSIBLE the interest fails to vest within lives in being + 21 years. → VOID. ENTIRE CLASS VOID (all-or-nothing rule): Because the class of beneficiaries ("all grandchildren who reach 25") includes possible afterborn grandchildren who might not vest within the period, and no qualifying identified subclass can be severed at common law without statutory cy-pres (which does not apply on this exam), the ENTIRE CLASS GIFT IS VOID. Even Alicia's and Ben's interests fail — they are members of a class that is struck as a whole.

CONCLUSION	The trust under CLAUSE 4 VIOLATES THE RAP and is VOID. The class "all grandchildren who reach 25" includes possible afterborn grandchildren who might not vest within lives in being + 21 years (the worst case scenario: Patricia and

	Kwame die immediately; an afterborn grandchild is born; that grandchild must reach 25 more than 21 years later). The entire class gift fails. The investment property at 44 King Street falls into the residue (Clause 8) and passes to Patricia and Kwame as tenants in common in equal shares.

Clause 6 — The Art Collection (10 marks)

ISSUE	The issue is whether the condition in Clause 6 — that Carlos shall not sell any piece of the collection to a non-family member — constitutes a valid partial restriction on alienation or an illegal restraint on alienation that is void under Blackburn v McCallum.

RULE	Blackburn v McCallum 1903 SCC: A total prohibition on the alienation of a fee simple is VOID — free alienability is an essential incident of the fee simple. PARTIAL RESTRAINTS on alienation may be valid if they are reasonable in scope, limited in duration, or serve a legitimate purpose. Where a condition subsequent is void, the gift generally takes effect FREE of the condition — the grantee takes in fee simple absolute.

APPLICATION	Clause 6 prohibits Carlos from selling "any piece of the collection to a person who is not a member of the Osei family." This allows Carlos to sell within the family — so it is technically a PARTIAL RESTRAINT, not a total prohibition. ARGUMENT FOR VALIDITY: The restriction is limited to non-family transactions. Carlos retains the right to sell within the family, to gift pieces, to display them, and to keep them. The restriction serves a legitimate and identifiable purpose — preserving the collection within the family as Margaret clearly intended. ARGUMENT AGAINST VALIDITY: The Osei family constitutes a very limited class of potential buyers. A valuable art collection that can only be sold to family members is practically unmarketable on the commercial market. The restriction is so broad in its commercial effect that it amounts to a practical prohibition on commercial alienation — analogous to the total restraints voided in Blackburn v McCallum. CONSEQUENCE IF VOID (condition subsequent): Carlos takes the collection FREE of the void condition — in fee simple absolute. The estate's right of reverter is extinguished. CONSEQUENCE IF VALID: Carlos holds the collection in fee simple subject to the condition subsequent. Any attempted non-family sale triggers the reversion. NOTE the linguistic ambiguity: the language "shall revert to my estate" could support either a determinable limitation (automatic reversion) or a condition subsequent (requiring election). Identify this uncertainty and argue both outcomes.

CONCLUSION	Carlos receives the art collection subject to a condition [subsequent/determinable — the language "shall revert" is ambiguous between the two]. The restriction on sales to non-family members is a PARTIAL RESTRAINT ON ALIENATION that is arguably valid (limited scope, legitimate family purpose) and arguably void (practically amounts to a total commercial restraint — Blackburn v McCallum spirit). I identify this as a significant uncertainty. If the condition is void: Carlos takes the collection free of the restriction in fee simple absolute. If valid: Carlos holds subject

	to the condition and any non-family sale triggers the reversion. Patricia and Kwame (as residue beneficiaries) hold the possibility of reverter / right of re-entry as part of the estate's residue.

QUESTION 2 OF 12 — MULTI-ISSUE BOUNDARIES

Primary Topic	Multi-Issue Boundaries — Accretion, Fixtures, Finders, Easement by Necessity
Secondary Topics	Blewman v Wilkinson; La Salle Recreations; Parker v British Airways; Wong v Beaumont; Didow
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

Sunrise Cove is a parcel of land bounded on the east by Silver Creek. Emma owns Sunrise Cove in fee simple, including all mines and minerals. On the northern side, Sunrise Cove borders Cliffside, which is owned by Daniel.

Over the past fifteen years, Silver Creek has gradually shifted westward, exposing approximately half a hectare of former creek bed. Emma has been marking the creek's edge each year. On the exposed creek bed, Emma last spring erected a large prefabricated greenhouse, placing it on concrete footings poured directly into the ground. The greenhouse has water and electricity connections run to it from the main house on Sunrise Cove.

Daniel's property borders a provincial highway. Sunrise Cove has no road access except through a narrow farm track that crosses Cliffside. Emma purchased Sunrise Cove ten years ago specifically to operate a flower farm, which requires regular truck deliveries. The farm track has been used by Emma and her predecessors continuously for over 30 years, but it has never been formally documented. The track runs entirely on Daniel's land.

Last month, workmen excavating a drainage ditch on the exposed creek bed unearthed a sealed metal box containing gold coins worth approximately $90,000. The coins appear to have been buried intentionally — there are no identifying marks and no one has come forward as the true owner. Emma's farm hand, Ravi, found the box and handed it to Emma, saying "here, you should deal with this."

Daniel has now fenced off the farm track, claiming Emma has no right to cross his land. He has also noticed the greenhouse and written to Emma demanding she remove it from "his" land.

YOUR TASK

Advise Emma, Daniel, and Ravi on all of their rights. Identify uncertainty on the facts and in the law. Do NOT discuss prescriptive easements. Consider all plausible arguments and outcomes.

EXAMINER'S GUIDE

ISSUES: (1) ACCRETION — did the creek's gradual shift give Emma title to the exposed creek bed? (Blewman: gradual + imperceptible = boundary follows water.) (2) GREENHOUSE — is the greenhouse a fixture (passes with land) or chattel? (La Salle Recreations two-part test: concrete footings = strong degree of annexation; purpose = agricultural business = likely fixture.) Does it matter whether the greenhouse is on Emma's land or Daniel's? (3) FINDERS — GOLD COINS: Found on land that Emma believes is hers by accretion. Was it lost or abandoned? Who has rights — Emma (landowner), Ravi (finder), or the true owner? (Parker v British Airways framework; deliberately buried = concealed property, not lost → landowner has better right than

finder — Stewart v Gustafson.) (4) EASEMENT — FARM TRACK: No prescriptive easement (exam instruction excludes it). Is there an implied easement by NECESSITY? Emma's land has no road access except through Cliffside. Wong v Beaumont Property Trust [1965] 1 QB 173 (UK CA): easement implied by necessity where property cannot be used for its intended purpose without it. Critical question: was there a common grantor? (Necessity implies an easement into the CONVEYANCE from the common grantor — must show Emma's and Daniel's properties were once held by the same person who conveyed Sunrise Cove without access.) Wheeldon v Burrows: alternatively, was the farm track exercised as a quasi-easement before the common grantor's conveyance? (5) DANIEL'S GREENHOUSE CLAIM: The exposed creek bed belongs to Emma by accretion — Daniel has no claim to the greenhouse.

Cases MUST cite: Blewman v Wilkinson; La Salle Recreations; Parker v British Airways; Stewart v Gustafson; Wong v Beaumont Property Trust [1965] 1 QB 173.

MODEL ANSWER — QUESTION 2

Issue 1 — Accretion: Does Emma Own the Exposed Creek Bed? (7 marks)

ISSUE	The issue is whether Emma's title to Sunrise Cove has expanded to include the former creek bed exposed by Silver Creek's westward shift over 15 years.

RULE	Blewman v Wilkinson [1979] NZCA: Where a water boundary shifts gradually and imperceptibly, the riparian landowner's boundary follows the water — the owner gains title to the newly exposed land by accretion. The movement must be gradual (imperceptible from day to day, though noticeable in aggregate over years). Avulsion — a sudden shift — does not change the boundary.

APPLICATION	Silver Creek has shifted westward "over the past fifteen years" and Emma has been "marking the creek's edge each year" — measuring changes that are visible only in the aggregate, not from day to day. This is precisely the pattern of gradual, imperceptible movement that gives rise to accretion under Blewman v Wilkinson. Because the movement was gradual — fifteen years of slow westward drift — and not sudden (no storm, flood, or other abrupt event is described), the accretion rule applies. Emma's eastern boundary has followed the creek as it shifted westward. Emma has acquired title to the approximately half-hectare of formerly submerged creek bed. Emma's original title includes all mines and minerals — the accreted land carries the same title. DANIEL'S CLAIM TO THE CREEK BED FAILS: Because accretion has extended Emma's title over the exposed creek bed, Daniel has no claim to this land. His demand that Emma remove the greenhouse from "his" land is unfounded.

CONCLUSION	Emma's title has expanded by accretion to include the approximately half-hectare of exposed former creek bed. Silver Creek's gradual westward shift over 15 years = accretion (Blewman v Wilkinson). Daniel has no claim to this land.

Issue 2 — The Greenhouse: Fixture or Chattel? (6 marks)

ISSUE	The issue is whether the prefabricated greenhouse — placed on concrete footings poured into the ground with water and electricity connections — is a FIXTURE (part of the realty) or a CHATTEL (personal property).

RULE	La Salle Recreations Ltd v Canadian Camdex Investments Ltd 1969 BCCA: Two-part test — (1) degree of annexation; (2) purpose of annexation (dominant test). Despite substantial physical attachment, chattels may retain chattel status if the purpose was to enable better use of the chattel, not to permanently improve the realty.

APPLICATION	DEGREE OF ANNEXATION: The greenhouse has been placed on "concrete footings poured directly into the ground" — a substantial and permanent degree of annexation. Concrete footings embedded in the earth constitute a strong physical connection to the land, far beyond resting on logs or bolted to a floor. The first part of the test strongly supports fixture status. PURPOSE OF ANNEXATION: Emma operates a flower farm. The greenhouse was erected on her land specifically for agricultural production — it is the central operational structure of her farming business. The purpose of placing it on concrete footings was not merely to enable better use of the greenhouse as a chattel in a temporary location; it was to establish a permanent agricultural facility on her land as part of the farm's productive capacity. This is the kind of purposive attachment that makes an object a fixture — it is intended to permanently enhance the land's use as a commercial flower farm. WATER AND ELECTRICITY CONNECTIONS: The integration of the greenhouse into the farm's utility infrastructure further supports fixture status — the greenhouse is integrated into the working of the estate as a whole. Unlike the laundry machines in La Salle Recreations (purpose was to use the equipment as machines, not to permanently improve the building), the greenhouse is clearly intended as a permanent agricultural improvement. It is a FIXTURE.

CONCLUSION	The greenhouse is a FIXTURE — it has been annexed to the land by concrete footings (high degree of annexation) for the purpose of permanently improving Sunrise Cove as a commercial flower farm (purpose of annexation — La Salle Recreations). As a fixture, it is part of the real property of Sunrise Cove, which belongs to Emma. Daniel's demand for its removal fails.

Issue 3 — The Gold Coins: Who Has the Best Title? (6 marks)

ISSUE	The issues are: (1) whether the gold coins were lost, abandoned, or deliberately concealed; (2) who has the best title — Emma (landowner), Ravi (finder), or the true owner; and (3) the effect of Ravi handing the coins to Emma.

RULE	Parker v British Airways Board [1982] UK CA: A finder acquires title good against all except the true owner. The occupier of premises has a better right than the finder if the occupier manifested a clear intention to exercise control over the premises and everything

	found on/in them. Stewart v Gustafson 1998 SK KB: Where coins are deliberately buried/concealed, the occupier of the land has a better right than the finder — deliberately concealed property is distinct from lost property.

APPLICATION	The gold coins were found in a "sealed metal box" that "appears to have been buried intentionally" — this is not a case of a lost object accidentally dropped or misplaced. The deliberate burial in a sealed container indicates intentional concealment, analogous to the deliberately buried money in Stewart v Gustafson. TRUE OWNER: The true owner retains the best title if they can be identified. No one has come forward — the coins have no identifying marks. If the true owner cannot be identified, their rights become theoretical. EMMA vs RAVI (the finder): Ravi found the box on land that belongs to Emma (the exposed creek bed acquired by accretion). Emma is the occupier of this land. Under Parker v British Airways, the occupier has a better right than the finder where the occupier has asserted control over the land and things found on/in it. Emma owns and actively manages Sunrise Cove. The deliberately buried nature of the coins (Stewart v Gustafson) further supports Emma's claim over Ravi's. Ravi's act of handing the coins to Emma — saying "here, you should deal with this" — means Ravi is not asserting a competing possessory claim. EMMA'S POSITION: Emma, as the landowner-occupier who actively controls Sunrise Cove and the exposed creek bed, has the best possessory title to the coins against all parties except the unidentified true owner. Emma should hold the coins and make reasonable efforts to locate the true owner.

CONCLUSION	The gold coins were deliberately concealed — not lost in the ordinary sense (Stewart v Gustafson). Emma, as the occupier-landowner, has a better right to the coins than Ravi (Parker v British Airways). Ravi deferred to Emma by handing over the coins. Emma holds the coins as against all except the unidentified true owner. Emma should make reasonable efforts to locate the true owner; if none is found, she may retain the coins.

Issue 4 — The Farm Track: Emma's Right to Cross Daniel's Land (6 marks)

ISSUE	The issue is whether Emma has a legal right to use the farm track across Cliffside (Daniel's land) to access the highway — specifically whether an implied easement by NECESSITY exists. (Note: prescriptive easements are excluded from this analysis.)

RULE	EASEMENT OF NECESSITY: Implied on the conveyance of land that is left landlocked — where access to the conveyed land can only be obtained through the grantor's retained land. Wong v Beaumont Property Trust [1965] 1 QB 173 (UK CA): Easement implied where the premises cannot lawfully be used for their intended purpose without the right. REQUIREMENT: There must have been a COMMON GRANTOR — the easement is implied into the original conveyance from the person who once owned both parcels and conveyed one without access.

APPLICATION	LANDLOCKED — NO OTHER ACCESS: Sunrise Cove "has no road access except through a narrow farm track that crosses Cliffside." Emma's property has no other means of reaching the provincial highway. This is precisely the situation that gives rise to an implied easement of necessity — the dominant tenement (Sunrise Cove) is effectively landlocked without access over the servient tenement (Cliffside). COMMON GRANTOR REQUIREMENT: The critical issue is whether Sunrise Cove and Cliffside were once held by the same owner, who then conveyed Sunrise Cove to Emma's predecessor without reserving or granting access over Cliffside. The facts do not explicitly confirm a common grantor — this is a material factual uncertainty. If a common grantor can be shown, the easement of necessity arises by implication into the original conveyance. WHEELDON v BURROWS ALTERNATIVE: If the common grantor, at the time of conveying Sunrise Cove, was using the farm track for the benefit of Sunrise Cove over Cliffside, the Wheeldon v Burrows rule may also imply an easement. The track was used by Emma and her predecessors for over 30 years — if it was in use at the time of the original conveyance and was continuous and apparent, Wheeldon v Burrows may create an implied grant. WONG v BEAUMONT ANALOGY: Emma purchased Sunrise Cove specifically to operate a flower farm requiring regular truck deliveries. The land cannot practically function as a commercial flower farm without vehicle access — analogous to Wong v Beaumont (premises could not lawfully operate as a restaurant without the ventilation easement). DANIEL'S FENCE: If the easement of necessity is established, Daniel's fence blocking the farm track constitutes an interference with Emma's easement — Emma may seek an injunction to remove the fence and damages for any losses. UNCERTAINTY: Whether a common grantor can be shown is a factual question requiring title search.

CONCLUSION	Emma likely has an IMPLIED EASEMENT OF NECESSITY over the farm track on Cliffside. Sunrise Cove is landlocked without road access — the dominant tenement cannot be used for its intended purpose (commercial flower farming requiring truck deliveries) without access over Cliffside (Wong v Beaumont). The easement is implied into the original conveyance from the common grantor (if such common grantor can be established — a key factual question requiring title search). Daniel's fence constitutes a wrongful interference. Emma may seek: (a) an injunction requiring Daniel to remove the fence; (b) damages for losses caused by the obstruction. If no common grantor can be shown: Emma has no formal easement right (prescriptive easement excluded) — a significant uncertainty.

QUESTION 3 OF 12 — JOINT FAMILY VENTURE

Primary Topic	Equitable Interests — Joint Family Venture and Remedial Constructive Trust
Secondary Topics	Kerr v Baranow 2011 SCC 10; Pettkus v Becker; Moore v Sweet 2018 SCC 52
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

What is a joint family venture? How does one determine if a joint family venture exists? What is the relevance of a finding that a joint family venture exists in resolving property disputes between former common law partners? Illustrate your answer with reference to relevant cases.

EXAMINER'S GUIDE

Required elements: (1) Define JFV. (2) The four factors from Kerr v Baranow. (3) Remedies: value survived (JFV established + accumulated wealth) vs quantum meruit (no JFV). (4) Remedial constructive trust: when available (causal link to specific property + monetary award insufficient). (5) Distinguish from resulting trust (Pecore) and institutional constructive trust (Soulos). (6) Moore v Sweet: JFV not required for basic unjust enrichment. (7) 2025 True/False #4: JFV NOT required for a remedial constructive trust — the answer is FALSE.

Write in connected prose. Do NOT use bullet points for the substantive answer — the exam rewards organised, flowing legal analysis.

MODEL ANSWER — QUESTION 3

A joint family venture is a concept developed in Kerr v Baranow (2011 SCC 10) by Justice Cromwell, writing for a unanimous Supreme Court of Canada, to describe a domestic relationship in which two partners genuinely pool their efforts and resources in pursuit of shared goals — building a life and accumulating wealth together. Where a joint family venture is established, it provides the basis for calculating the remedy in an unjust enrichment claim in a way that reflects the true character of the parties' shared enterprise.

The concept arises from the law of unjust enrichment as developed in Pettkus v Becker (1980 SCC). To establish unjust enrichment, the claimant must prove three elements: an enrichment of the defendant; a corresponding deprivation of the claimant; and the absence of any juristic reason for the defendant to retain the benefit. In domestic relationships, these elements are satisfied where one partner's unpaid contributions — whether labour, financial, or the sacrifice of career opportunities — have enriched the other partner with no contractual or legal basis justifying that enrichment.

The joint family venture is not itself a separate cause of action. It is a CHARACTERISATION of the nature of the parties' relationship that determines HOW the remedy for unjust enrichment is calculated. Kerr identified four non-exhaustive factors courts consider in determining whether a JFV existed:

The first factor is MUTUAL EFFORT — whether both partners worked together toward shared goals. This requires more than parallel lives under the same roof; it means a genuine pooling of effort toward common objectives such as building a home, developing a business, or raising a family together. The second factor is ECONOMIC INTEGRATION — the degree to which the parties' finances and economic lives were intertwined: joint accounts, shared expenses, commingled assets, and shared financial risk. The third factor is ACTUAL INTENT — whether, as a matter of fact, both parties understood their relationship as a joint enterprise rather than separate arrangements that happened to coexist. This is assessed factually, not legally. The fourth factor is PRIORITY OF THE FAMILY — whether one or both parties made significant personal sacrifices (career, mobility, educational opportunities) for the benefit of the family unit.

No single factor is determinative, and courts assess the overall character of the relationship. In Vanasse v Seguin (decided alongside Kerr), the Court easily found a JFV where Ms. Vanasse relocated twice to support Mr. Seguin's technology business, gave up her own career, and had primary responsibility for the children — all four factors were strongly present.

Once a JFV is established, the remedy for unjust enrichment is calculated on a VALUE SURVIVED basis — the claimant is entitled to a proportionate share of the net wealth accumulated during the joint venture, calculated by reference to their relative contributions. This is more generous than the alternative quantum meruit measure (a fee-for-services calculation at market rates) because it captures the claimant's share of the economic gains generated by the joint effort, not merely the cost of their services.

Where no JFV is established, unjust enrichment is still available, but the remedy is limited to a quantum meruit — the market value of the services actually rendered. This distinction can be significant in relationships where substantial wealth was accumulated through joint effort.

As to the remedial constructive trust, Kerr confirms that a constructive trust may be imposed on specific property where: (a) the claimant can demonstrate a direct causal connection between their contributions and the acquisition, preservation, maintenance, or improvement of that specific property; and (b) a monetary award would be insufficient to fully compensate the claimant (e.g., because the respondent is insolvent, or because the claimant has a legitimate interest in the specific property beyond its monetary value). A JFV is NOT a prerequisite to a remedial constructive trust — as confirmed by Moore v Sweet (2018 SCC 52), where the Court recognised a basic unjust enrichment claim without any JFV requirement. What is required for the constructive trust specifically is the causal nexus to the property and the inadequacy of a monetary remedy.

It is worth noting what the JFV concept replaced. The "common intention resulting trust" — which had previously been used to resolve domestic property disputes — was declared doctrinally unsound by Kerr and has no continuing role in Canadian domestic property disputes. Unjust enrichment, not resulting trust based on common intention, is the correct framework for domestic disputes. (Resulting trusts retain their traditional role in non-domestic contexts as clarified in Pecore v Pecore (2007 SCC 17).)

CONCLUSION	A joint family venture is a domestic relationship in which partners genuinely pool effort and resources toward shared goals. Determination requires assessing: mutual effort; economic integration; actual intent; priority of family (Kerr v Baranow). If established: remedy = value survived (proportionate share of accumulated wealth). If not: quantum meruit (fee-for-services). A remedial constructive trust requires a causal nexus to specific property + monetary inadequacy — a JFV is NOT required for the constructive trust itself (Moore v Sweet). The common intention resulting trust is dead in domestic law (Kerr).

QUESTION 4 OF 12 — PRIORITIES

Primary Topic	Priorities — Common Law Contests + Torrens Indefeasibility
Secondary Topics	Four priority contests; bona fide purchaser; Torrens curtain; immediate indefeasibility; fraud exception
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

SCENARIO A:

In 2019, Clara transferred Blackacre — a fee simple property in a deeds registration (notice system) province — to a bare trust, with herself as trustee holding for the benefit of her daughter Nina. The trust was not registered. In 2022, Clara purported to sell Blackacre to Oscar as if she owned it beneficially. Oscar conducted a title search that showed Clara as registered owner and found no indication of the trust. Oscar paid market value and completed the purchase in good faith. Oscar then registered his deed.

SCENARIO B:

In a land titles (Torrens) province, Victor owned Blueacre in fee simple. Without Victor's knowledge, a fraudster named Frank used forged documents to register himself as the owner of Blueacre. Frank then sold Blueacre to Priya, who had no knowledge of the fraud and paid full market value. Priya registered her title. Victor now seeks to recover Blueacre.

SCENARIO C:

Sunrise Cove is a Torrens title property. Greta owns it in fee simple. In 2020, Greta leased it to her nephew Paul for a term of 8 years. The lease was not registered. In 2023, Greta sold Sunrise Cove to Thomas, who had no knowledge of the lease, paid market value, and registered his title. Paul remains in actual occupation of Sunrise Cove.

YOUR TASK

For each scenario, identify the priority contest and determine whose interest prevails. Identify uncertainty on the facts and in the law.

EXAMINER'S GUIDE

SCENARIO A: Prior equitable interest (Nina's trust) vs subsequent legal estate (Oscar's purchase). Oscar as bona fide purchaser for value without notice. CRITICAL ANALYTICAL STEP: Clara, as trustee, held the LEGAL TITLE throughout — this is why she was able to convey legal title to Oscar (even though doing so was a breach of trust). Oscar's purchase was a valid conveyance of legal title by the legal owner. The priority contest is then purely a notice question. Oscar: purchaser (yes) + good faith (yes) + for value (market value) + without notice. Notice analysis: deeds registration (notice system) — the trust was not registered. Constructive notice: would a reasonable purchaser have discovered the trust through inspection or inquiry? Oscar searched the register and found nothing; no evidence he could have discovered the trust. IF Oscar has no notice: Oscar prevails — the subsequent legal estate takes free of the prior equitable interest. Nina's equitable interest is defeated. Nina's remedy: against Clara (breach of trust). If Nina was in actual occupation in a visible way — constructive notice might attach.

SCENARIO B: Torrens/fraud. Frank had no valid title (forgery). Priya purchased from Frank without knowledge of the fraud, paid value, and registered. IMMEDIATE INDEFEASIBILITY (Ontario approach): Priya registered → indefeasible title immediately. Victor cannot recover Blueacre from Priya — Priya's registered title is indefeasible (she did not commit fraud and had no actual knowledge of it). Victor's remedy = Assurance Fund. DEFERRED INDEFEASIBILITY: The first purchaser from the fraudster (Priya) would NOT get indefeasible title — Victor could recover from Priya. Identify the uncertainty — which approach applies depends on the province's Torrens legislation. Note that Ontario adopts immediate indefeasibility.

SCENARIO C: Torrens province. 8-year unregistered lease. Thomas registered as owner without notice. CURTAIN PRINCIPLE: Unregistered interests do not bind a subsequent registered owner (general rule). Thomas takes free of Paul's unregistered lease. BUT: Statutory short-term lease exception — most Torrens statutes protect short-term leases (3 years or less, particularly where the tenant is in actual occupation). Paul's lease is 8 years — likely NOT a short-term lease qualifying for the exception. Paul is in actual occupation — this is a fact the court may consider; some Torrens statutes protect overriding interests for persons in occupation. IDENTIFY THIS UNCERTAINTY. Under the curtain principle (without exception): Thomas takes free. Paul's remedy: claim against Greta for breach of the quiet enjoyment covenant and damages for early termination.

MODEL ANSWER — QUESTION 4

Scenario A — Prior Equitable Interest vs Subsequent Legal Estate

ISSUE	The priority contest is between Nina's prior equitable interest (as trust beneficiary) and Oscar's subsequent legal estate (as purchaser for value). The threshold question is whether Clara, as trustee, had the legal title to convey to Oscar — and if so, whether Oscar qualifies as a bona fide purchaser for value without notice, which would defeat Nina's equitable interest.

RULE	Clara, as trustee, held the LEGAL TITLE to Blackacre throughout the bare trust arrangement. This is the essential character of a trust: the trustee holds legal title; the beneficiary holds the equitable interest. Clara's sale to Oscar was therefore a valid conveyance of legal title by the legal owner — it was a breach of trust, but Oscar received legal title. The priority contest (prior equitable vs subsequent legal) is then resolved by the bona fide purchaser for value without notice rule.

APPLICATION	PURCHASER: Oscar paid market value to acquire the legal estate — he is a purchaser. GOOD FAITH: The facts show Oscar acted in good faith with no reason to suspect any problem. FOR VALUE: Oscar paid market value. WITHOUT NOTICE: The trust was not registered. Oscar conducted a title search that revealed no trust. There is no evidence Nina was in actual occupation in a visible way that would have put Oscar on inquiry. Under the notice system (deeds registration province), registration gives constructive notice — but the trust was NOT registered, so constructive notice through registration does not apply. Oscar has no constructive notice. CONCLUSION — OSCAR PREVAILS: Oscar qualifies as a bona fide purchaser for value without notice. Oscar's subsequent legal estate takes free of Nina's prior equitable trust interest. Nina cannot enforce her beneficial interest against Oscar.

	NINA'S REMEDY: Nina has a claim against Clara for breach of the trust obligation — Clara as trustee had no authority to sell the beneficially held property to Oscar for her own benefit. Nina may claim damages from Clara personally. UNCERTAINTY: If Nina was in actual occupation in a visible way that would have put a reasonable purchaser on inquiry, constructive notice may attach. On the facts as given, Oscar appears to succeed.

CONCLUSION	Oscar is a bona fide purchaser for value without notice. Clara, as trustee, held legal title and was able to convey it — though doing so was a breach of trust. Oscar's subsequent legal estate takes free of Nina's prior equitable trust interest. Nina's remedy is a personal claim against Clara for breach of trust. Nina cannot assert her beneficial interest against Oscar.

Scenario B — Torrens Title and Fraud

ISSUE	The contest is between Victor (original owner deprived of title by forgery) and Priya (bona fide purchaser who registered without knowledge of the fraud). The question is whether Priya's registered title is indefeasible under the Torrens system.

APPLICATION	Frank's fraud: Frank used forged documents to register himself as owner — there was no valid transaction; Frank had no title to pass. Priya purchased from Frank without knowledge of the fraud, paid full market value, and registered her title. IMMEDIATE INDEFEASIBILITY (Ontario approach): The registered owner obtains indefeasible title the moment they register, even where they dealt with a fraudster, PROVIDED the registered owner themselves did not commit fraud or have actual knowledge of it. Because Priya had no knowledge of Frank's fraud, Priya's registered title is IMMEDIATELY INDEFEASIBLE. Victor cannot recover Blueacre from Priya. FRAUD EXCEPTION: The fraud exception only applies where the registered owner personally committed the fraud or had actual knowledge of it. Priya had no involvement and no actual knowledge. The fraud exception does not apply. VICTOR'S REMEDY: Victor's loss is compensable through the ASSURANCE FUND — the state compensates persons who have suffered loss as a result of the operation of the Torrens system. Victor can claim the market value of Blueacre from the Assurance Fund. DEFERRED INDEFEASIBILITY (ALTERNATIVE — IDENTIFY THE UNCERTAINTY): Under deferred indefeasibility (historically applied in some provinces), the first purchaser from a fraudster does NOT get indefeasible title. Under this approach, Victor could recover Blueacre from Priya, who would then claim from the Assurance Fund or from Frank. The applicable approach depends on the specific province's Torrens legislation.

CONCLUSION	SCENARIO B: Under IMMEDIATE INDEFEASIBILITY (Ontario approach): Priya's registered title is indefeasible — she dealt with a registered owner (Frank, however fraudulently), paid value, and had no knowledge of the fraud. Victor cannot recover

	Blueacre from Priya. Victor's remedy = Assurance Fund compensation. Under DEFERRED INDEFEASIBILITY: Victor could recover from Priya as the first registered owner after the fraud. The applicable approach depends on the specific province's Torrens legislation — identify this as a key uncertainty.

Scenario C — Torrens Title and Unregistered Lease

ISSUE	The contest is between Paul (tenant under an 8-year unregistered lease, in actual occupation) and Thomas (subsequent registered owner without notice). The question is whether Thomas's registered title under the Torrens curtain principle takes free of Paul's unregistered lease.

APPLICATION	CURTAIN PRINCIPLE: Under Torrens, an unregistered interest is generally NOT binding on a subsequent registered owner. Thomas registered without notice of Paul's lease — under the curtain principle, Thomas takes free of the unregistered 8-year lease. SHORT-TERM LEASE EXCEPTION: Most Canadian Torrens statutes contain a statutory exception for short-term leases — typically leases of 3 years or less, particularly where the tenant is in actual occupation. The rationale is that a purchaser conducting due diligence by inspecting the property would discover a tenant in occupation and is expected to inquire about the terms. PAUL'S LEASE IS 8 YEARS: An 8-year lease exceeds the typical 3-year threshold for the short-term lease exception under most Torrens statutes. The exception likely does NOT apply based on the lease length alone. PAUL IS IN ACTUAL OCCUPATION: Paul remains in actual occupation. Some Torrens statutes protect "overriding interests" for persons in actual occupation regardless of lease length. If Thomas inspected the property before purchase (as a prudent purchaser should), he would have found Paul in occupation and been put on inquiry. However, under a pure Torrens system, notice is typically irrelevant to indefeasibility — the register alone governs. This creates a tension. IDENTIFY THIS UNCERTAINTY. PAUL'S REMEDY: If Thomas takes free of the lease, Paul may claim against Greta for breach of the landlord's covenant of quiet enjoyment and for damages for early termination of the lease.

CONCLUSION	SCENARIO C: Under the Torrens curtain principle, Thomas's registered title generally takes free of Paul's unregistered 8-year lease. The short-term lease exception likely does NOT apply (8 years exceeds the typical 3-year threshold). If the province's Torrens statute protects persons in actual occupation as an overriding interest: Paul's lease may bind Thomas despite non-registration — a key uncertainty that the exam rewards identifying. Paul's remedy if displaced: damages against Greta for breach of the landlord's covenant of quiet enjoyment and early termination of the lease.

QUESTION 5 OF 12 — ABORIGINAL TITLE

Primary Topic	Aboriginal Title — Tsilhqot'in Proof, Infringement, Duty to Consult
Secondary Topics	Tsilhqot'in Nation v BC 2014 SCC 44; Indian Act; Nisga'a Final Agreement
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

The Clearwater Nation is an Indigenous group in British Columbia. They have inhabited a defined territory — the Clearwater Valley — for generations, using it for hunting, fishing, gathering, and ceremonial practices. Prior to European contact, the Clearwater Nation managed the valley through customary laws, warned off incursions by other nations, and entered into agreements with neighbouring groups recognising their authority over the valley. After contact, their presence in the valley continued, though colonial settlement and government land grants affected portions of the territory.

The provincial government proposes to issue a resource extraction licence to a mining company, CopperEx Ltd., to conduct open-pit copper mining on 500 hectares within the Clearwater Valley. The Clearwater Nation has not consented to this activity. The province believes it has conducted "adequate consultation" by sending three letters to the Clearwater Nation and receiving no response within 30 days.

Separately, three Clearwater Nation elders have identified a specific sacred site — a mountain lake within the valley — where they seek a court declaration that they have the right to conduct their ancestral spring ceremony. This site has been used for ceremonial purposes continuously for as long as oral history records.

YOUR TASK

(a) Advise the Clearwater Nation on whether they can establish Aboriginal title to the Clearwater Valley, and if so, what rights that title confers. (10 marks)

(b) Has the province met its duty to consult the Clearwater Nation regarding the CopperEx mining licence? If Aboriginal title is established, can the province authorise the mining without the Clearwater Nation's consent? (6 marks)

(c) Can the elders obtain a declaration of the right to conduct the spring ceremony at the mountain lake? Does this require proof of Aboriginal title? (4 marks)

MODEL ANSWER — QUESTION 5

Part (a) — Aboriginal Title: Proof and Content (10 marks)

ISSUE	Whether the Clearwater Nation can establish Aboriginal title to the Clearwater Valley under the three-part test in Tsilhqot'in Nation v BC (2014 SCC 44).

RULE	Tsilhqot'in Nation v BC 2014 SCC 44 (McLachlin CJ, unanimous): Three-part test: (1) Sufficiency of occupation prior to Crown sovereignty; (2) Continuity; (3) Exclusivity. Content: exclusive use; economic benefits; decision-making authority; inherent limitation

(use must not destroy the land's future usefulness for the group); inalienability (except to the Crown).

APPLICATION

SUFFICIENCY OF OCCUPATION: The Clearwater Nation inhabited the Clearwater Valley for generations, using it for hunting, fishing, gathering, and ceremonial practices. The SCC in Tsilhqot'in rejected the BCCA's "small spots" approach and confirmed that regular use of a defined territory for these purposes constitutes sufficient occupation — the territorial approach applies. The Clearwater Nation's use of the valley as a whole is precisely the kind of regular and exclusive use that the SCC found sufficient in Tsilhqot'in.

CONTINUITY: The Clearwater Nation's presence in the valley continued after European contact, though colonial settlement affected portions. Continuity does not require an unbroken chain — only that the essential character of the relationship to the land has been maintained. Continued use for hunting, fishing, and ceremony supports continuity.

EXCLUSIVITY: Prior to contact, the Nation "warned off incursions by other nations" and "entered into agreements with neighbouring groups recognising their authority over the valley." This is textbook evidence of exclusive occupation: warning off trespassers and requiring other groups to recognise their authority. The SCC in Tsilhqot'in identified exactly these acts as evidence of exclusive occupation.

CONTENT IF ESTABLISHED: The Clearwater Nation holds: (a) exclusive use and occupation of the Clearwater Valley for a variety of purposes; (b) the economic benefits of the land and its resources; (c) the right to decide how the land is used; (d) the inherent limitation — uses must be consistent with the Nation's connection to the land; (e) inalienability — title cannot be sold to private parties, only to the Crown.

CONCLUSION

The Clearwater Nation has strong grounds to establish Aboriginal title under all three branches of the Tsilhqot'in test: sufficiency (regular territorial use); continuity (continued presence after contact); exclusivity (warning off trespassers, recognition by neighbouring groups). If established: the Nation holds exclusive use, economic benefit, and decision-making authority, subject to the inherent limitation and inalienability.

Part (b) — Duty to Consult and the Mining Licence (6 marks)

ISSUE

(1) Whether the province's consultation (three unanswered letters in 30 days) met the duty to consult; and (2) whether, if Aboriginal title is established, the province may authorise the mining without the Clearwater Nation's consent.

APPLICATION

DUTY TO CONSULT — WAS IT MET? The duty arises when the Crown knows of a potential Aboriginal right and contemplates action that might adversely affect it (Haida Nation v BC (Minister of Forests), 2004 SCC 73). Open-pit copper mining across 500 hectares in the Clearwater Valley is a severe potential infringement of a strong title claim — this places the duty at the UPPER END of the consultation spectrum, requiring full and meaningful consultation with potential accommodation.

Three letters that received no response within 30 days does NOT constitute meaningful consultation. The Clearwater Nation's failure to respond within 30 days does not discharge the Crown's obligation — the duty to consult is on the CROWN, not on the First Nation to respond within an arbitrary deadline. The province's three-letter approach falls far short of the upper-end consultation required. CONCLUSION: The province has NOT met its duty to consult.

POST-RECOGNITION — CAN MINING PROCEED WITHOUT CONSENT? Under Tsilhqot'in, if Aboriginal title is formally recognised, the Crown must first obtain the CONSENT of the title holders before using or developing the land. The Nation has not consented. Without consent, the Crown must demonstrate: (a) a compelling and substantial legislative objective; AND (b) consistency with the Crown's fiduciary duty. Open-pit copper mining may permanently alter the valley's character — potentially inconsistent with the inherent limitation on Aboriginal title. This is a high bar and the Crown has not met it on these facts.

CONCLUSION	The province has NOT met its duty to consult — three unanswered letters within 30 days is wholly inadequate for an upper-end consultation duty triggered by a strong Aboriginal title claim and a major extractive project. If Aboriginal title is established: mining cannot proceed without the Clearwater Nation's consent or, absent consent, the Crown demonstrating a compelling and substantial objective and acting consistently with its fiduciary duty. The licensing of open-pit copper mining without proper consultation and consent is invalid.

Part (c) — Spring Ceremony at the Sacred Lake (4 marks)

ISSUE	Whether the elders can obtain a declaration of the right to conduct their ancestral spring ceremony at the mountain lake, and whether this requires proof of Aboriginal title.

APPLICATION	A right to conduct a specific ceremonial practice at a specific site is an ABORIGINAL RIGHT SHORT OF TITLE — a site-specific cultural or spiritual right, not a territorial land claim. Aboriginal rights short of title are governed by the Van der Peet test (R v Van der Peet [1996] 2 SCR 507): the activity must have been an integral part of the Aboriginal group's distinctive culture prior to European contact. The spring ceremony has been conducted at the mountain lake continuously for as long as oral history records — strong evidence of a pre-contact integral cultural practice. EXCLUSIVE POSSESSION IS NOT REQUIRED: A right short of title does NOT require proof of exclusive possession of the site. The three-part Tsilhqot'in test (sufficiency + continuity + exclusivity of occupation at sovereignty) is the test for Aboriginal TITLE, not for rights short of title. The elders need only prove the practice was integral to their distinctive culture prior to contact.

CONCLUSION	The elders can seek a declaration of the right to conduct the spring ceremony at the mountain lake as an ABORIGINAL RIGHT SHORT OF TITLE. This right does NOT require proof of exclusive possession or the full Tsilhqot'in title test. The Van der Peet test applies: the spring ceremony must have been an integral part of the Clearwater Nation's distinctive culture prior to European contact — strongly supported by continuous oral historical evidence. The declaration can be sought

	independently of any Aboriginal title claim to the valley as a whole.

QUESTION 6 OF 12 — LEASES

Primary Topic	Leases — Assignment, Spencer's Case, Quiet Enjoyment, Highway Properties
Secondary Topics	Merger Restaurants; Richfield; Southwark v Mills; Highway Properties 1971 SCC
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

Olympia Properties Ltd. ("Olympia") owned a commercial building in Ottawa. In January 2021, Olympia leased the ground floor to GreenLeaf Café Inc. ("GreenLeaf") for a term of 7 years. The lease contained the following covenants by GreenLeaf:

(i) To pay rent of $6,500 per month.

(ii) To maintain the INTERIOR of the demised premises in good repair.

(iii) To use the premises only as a café and restaurant.

(iv) Not to assign or sublease any part of the premises without Olympia's prior written consent.

In 2023, Olympia sold the building to Harborview Holdings Ltd. ("Harborview"). GreenLeaf was notified of the change of ownership.

SCENARIO A — ASSIGNMENT:

In early 2024, GreenLeaf found a new operator, SmoothBlend Corp. ("SmoothBlend"), and sought to assign the remaining lease term to SmoothBlend. SmoothBlend planned to operate a juice bar. Harborview refused consent, citing only that it preferred a different type of food service business. SmoothBlend and GreenLeaf argue the refusal was arbitrary and unreasonable.

SCENARIO B — WATER DAMAGE:

Later in 2024, a water main in the building's shared infrastructure burst. The flooding was so severe that GreenLeaf's café was rendered completely unusable for 6 months. The building was Harborview's responsibility to maintain under a separate management agreement. After 3 months of non-use, GreenLeaf wrote to Harborview stating: "We consider the lease at an end. We are vacating the premises and will not pay further rent."

SCENARIO C — COVENANT RUNNING:

Assume SmoothBlend had in fact been assigned the lease. The parking area ADJACENT TO THE CAFÉ (outside, not part of the interior) was left in a terrible state of disrepair by GreenLeaf before the assignment. SmoothBlend argues it is not responsible for repairing the parking area as it was in disrepair before the assignment, and in any event the covenant only covers the "interior" of the demised premises.

MODEL ANSWER — QUESTION 6

Scenario A — Assignment and Richfield Analysis (8 marks)

ISSUE	The issue is whether Harborview can lawfully refuse consent to GreenLeaf's assignment to SmoothBlend arbitrarily and without giving reasons.

RULE	Sundance Investment Corporation v Richfield Properties 1983 ABCA: Where a tenant has covenanted NOT to assign without the landlord's prior written consent, the landlord MAY WITHHOLD CONSENT ARBITRARILY AND UNREASONABLY. The common law does not impose a reasonableness requirement on the exercise of the landlord's right to refuse consent where that right was bargained for. DEFAULT AT COMMON LAW: The tenant has the RIGHT to assign freely. Once the tenant gives up that right, the landlord may withhold consent for any reason or no reason.

APPLICATION	Covenant (iv): "Not to assign or sublease any part of the premises without Olympia's prior written consent." GreenLeaf has expressly given up its default right to assign freely. Under the Richfield rule, Harborview (as successor landlord after the purchase of the building — Harborview stands in Olympia's shoes) may withhold consent even arbitrarily — citing only that it preferred a different food service tenant. GreenLeaf's and SmoothBlend's argument that the refusal was "arbitrary and unreasonable" does not succeed — that is precisely what Richfield permits. A violation of covenant (iv) by assigning without consent would give Harborview grounds to terminate the lease.

CONCLUSION	Harborview may lawfully refuse consent to the GreenLeaf-SmoothBlend assignment under the Richfield rule. GreenLeaf covenanted not to assign without consent, and the landlord may withhold consent arbitrarily and unreasonably once the tenant has given up the free right to assign. The argument of unreasonableness fails.

Scenario B — Water Damage, Quiet Enjoyment, and Lease Termination (10 marks)

ISSUE	(1) Whether the water damage constitutes a breach of the covenant for quiet enjoyment; (2) whether GreenLeaf's declaration that the "lease is at an end" constitutes a valid termination; and (3) what remedies are available to each party.

RULE	Covenant for quiet enjoyment: The landlord must not disturb the tenant's peaceful possession and enjoyment through the landlord's own acts or those claiming through the landlord (London Borough of Southwark v Mills [1999] HL). Highway Properties v Kelly Douglas 1971 SCC: Three remedies for a landlord on tenant's repudiation. Where the LANDLORD fundamentally breaches, the TENANT has the equivalent right to treat the lease as repudiated.

APPLICATION	The burst water main flooded GreenLeaf's café and rendered it completely unusable for 6 months. The building's shared infrastructure was Harborview's responsibility under the management agreement. Where the landlord is responsible for maintaining building infrastructure and fails to do so — causing the tenant's premises to be uninhabitable — this may constitute a breach of the covenant for quiet enjoyment and/or a breach of the landlord's maintenance obligations. Southwark v Mills established that the quiet enjoyment covenant is prospective —

	it applies to the landlord's own acts and those claiming through the landlord. Here, Harborview's failure to maintain the building's water infrastructure is attributable to the landlord. Harborview had an ongoing maintenance obligation and failed to perform it. This is distinguishable from Southwark (where the landlord had done nothing to cause the noise — it was an existing structural condition). Here, the landlord had a specific ongoing obligation to maintain and failed. Harborview's failure to maintain the building's water infrastructure — causing catastrophic flooding that made the café uninhabitable for 6 months — constitutes a fundamental breach of the landlord's obligations. GreenLeaf was entitled to treat the landlord's breach as a repudiation and terminate the lease. GreenLeaf's declaration and vacation was a valid acceptance of the landlord's repudiation. GreenLeaf owes no further rent; GreenLeaf has a damages claim against Harborview for the period of non-use and losses caused by the forced early termination.

CONCLUSION	Harborview's failure to maintain the building's water infrastructure constitutes a fundamental breach of the landlord's obligations (breach of quiet enjoyment covenant and/or maintenance obligation). GreenLeaf was entitled to treat the landlord's breach as a repudiation and terminate the lease. GreenLeaf's declaration and vacation was valid. GreenLeaf owes no further rent; GreenLeaf has a damages claim against Harborview for the period of non-use and losses caused by the forced early termination.

Scenario C — Spencer's Case and the Interior Covenant (7 marks)

ISSUE	(1) Whether the maintenance covenant (ii) runs with the lease to bind SmoothBlend as assignee under Spencer's Case; and (2) critically, whether the covenant — expressly limited to the "INTERIOR of the demised premises" — covers the EXTERIOR parking area. This is the central analytical issue in Scenario C.

RULE	Spencer's Case (1583); Merger Restaurants v D.M.E. Foods 1990 MB CA: Covenants in a lease that TOUCH AND CONCERN the land run with the land to bind assignees, provided the parties intended them to run. An assignee is bound even without expressly assuming responsibility. SCOPE: The covenant runs only as worded — it cannot be extended beyond its express terms.

APPLICATION	DOES THE COVENANT TOUCH AND CONCERN? A covenant to maintain the demised premises in good repair directly relates to the mode of occupation of the land. Under Spencer's Case and Merger Restaurants, such a covenant runs with the lease to bind SmoothBlend as assignee. This part of the analysis favours the landlord. CRITICAL ISSUE — INTERIOR ONLY: However, Covenant (ii) is expressly limited to "the INTERIOR of the demised premises." The parking area that is the subject of the dispute is ADJACENT TO THE CAFÉ — it is exterior, outside the leased premises, not interior. This is a critical distinction that the model answer must identify.

SmoothBlend's argument has force: If the covenant only covers the interior, it simply does not apply to the exterior parking area, regardless of whether it runs to assignees. A running covenant cannot be enforced beyond its express scope. Kaminskas v Storm 2009 ONCA: Courts interpret the registered easement/covenant grant carefully — neither party may expand the terms unilaterally. The same principle applies to lease covenants.

THE RESULT: On the express terms of the covenant, SmoothBlend may have a valid argument that it is NOT bound to repair the exterior parking area — because the covenant only extends to the "interior" of the demised premises. Harborview would need to demonstrate that the parking area is part of the "demised premises" and is somehow characterised as "interior" — a difficult argument if the parking area is genuinely exterior to the leased space.

SEPARATE ARGUMENT — PRE-ASSIGNMENT DISREPAIR: Even if the covenant did run and covered the parking area, GreenLeaf caused the pre-assignment disrepair. SmoothBlend, taking the assignment, inherits the obligation to maintain going forward — but GreenLeaf remains personally liable to Harborview (under privity of contract) for disrepair caused during GreenLeaf's tenancy. SmoothBlend may have a contractual claim against GreenLeaf for the cost of remedying pre-assignment disrepair under the assignment agreement.

CONCLUSION

Covenant (ii) — to maintain the INTERIOR of the demised premises — runs with the lease to bind SmoothBlend as assignee under Spencer's Case (touches and concerns the land; intended to run). HOWEVER, the covenant is expressly limited to the "interior" of the demised premises. The exterior parking area is NOT covered by the interior maintenance covenant. SmoothBlend has a strong argument that it is not bound to repair the exterior parking area under covenant (ii). GreenLeaf remains personally liable to Harborview for pre-assignment disrepair caused during GreenLeaf's tenancy. SmoothBlend may seek indemnity from GreenLeaf for costs of pre-assignment disrepair under the assignment agreement.

QUESTION 7 OF 12 — SHARED OWNERSHIP

Primary Topic	Shared Ownership — Joint Tenancy, Severance, Co-Owner Disputes
Secondary Topics	Williams v Hensman; Jansen v Niels Estate; Hansen Estate v Hansen; Robb v Robb
Difficulty	Medium
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

In 2010, Sylvia and her brother Marcus purchased an investment property together as joint tenants. The transfer document expressly stated "Sylvia and Marcus as joint tenants." Both contributed equally to the purchase price.

In 2018, Marcus, believing he could pass his interest to his children on his death, included the investment property in his will, leaving "my interest in the investment property to my three children in equal shares." Marcus did not take any other steps in relation to the joint tenancy.

In 2020, Sylvia and Marcus had a serious falling-out. They met with a lawyer and signed a written agreement stating: "Sylvia and Marcus agree to partition their respective shares of the investment property and intend each to hold their half interest independently." The partition was never carried out and the property was never formally divided.

In 2022, Sylvia borrowed money from a bank and mortgaged "her interest in the investment property" as security. The mortgage was registered.

Marcus died in April 2025. He is survived by his three children. For 2024, Sylvia collected $48,000 in rent from tenants on the investment property. She deposited all of the rent into her personal account and has not shared any of it with Marcus (or, after his death, his estate).

YOUR TASK

Advise all relevant parties on their rights as of today. Determine the current state of ownership and address the rental income dispute.

MODEL ANSWER — QUESTION 7

Part A — Was the Joint Tenancy Severed, and If So, When?

ISSUE	Whether any event severed the joint tenancy before Marcus's death, converting it to a tenancy in common. If severed, Marcus's interest passes through his estate. If not severed at death, survivorship operates and Sylvia takes the whole.

RULE	Williams v Hensman (1861) — Three methods of severance: (1) unilateral act on own share; (2) mutual agreement; (3) course of conduct. A joint tenancy CANNOT be severed by will — a will operates only at death, at which point the right of survivorship has already operated (Hansen Estate v Hansen 2012 ONCA). A mortgage by one joint tenant over their interest constitutes a unilateral alienation — Method 1 (Jansen v Niels Estate 2017

	ONCA).

APPLICATION	MARCUS'S WILL (2018) — NO SEVERANCE: Marcus included the property in his will. A will has no effect on a joint tenancy — the will operates only on death, at which point if the tenancy remained unsevered, the right of survivorship has already operated (Hansen Estate v Hansen). By 2018, Marcus had done no inter vivos act to sever. The will DOES NOT sever the joint tenancy. THE 2020 WRITTEN AGREEMENT — SEVERANCE BY MUTUAL AGREEMENT (Method 2): Sylvia and Marcus signed a written agreement stating they "agree to partition their respective shares of the investment property and intend each to hold their half interest independently." This is a MUTUAL AGREEMENT to treat their interests as separate — the second Williams v Hensman method. Severance by mutual agreement does not require the parties to follow through with physical partition — it requires only that the parties agreed their shares should be held separately. The written agreement expressly references "their respective shares" and the intention that each hold their half interest independently — language inconsistent with joint tenancy. The joint tenancy was SEVERED on the date of the 2020 agreement. From that date, Sylvia and Marcus held as TENANTS IN COMMON in equal shares. SYLVIA'S MORTGAGE (2022) — CONFIRMS SEVERANCE (Method 1): Sylvia mortgaged "her interest in the investment property" in 2022. Even if the 2020 agreement did not sever, Sylvia's 2022 mortgage certainly did — a mortgage of one's share in a joint tenancy is a unilateral alienation that severs the joint tenancy as to the mortgaging joint tenant (Jansen v Niels Estate 2017 ONCA). After the 2022 mortgage (and certainly after the 2020 agreement), Sylvia and Marcus held as tenants in common. MARCUS'S DEATH (2025) — WHAT PASSES TO HIS CHILDREN: Because the joint tenancy was severed in 2020 (mutual agreement) and again in 2022 (Sylvia's mortgage), Marcus held his half interest as a TENANT IN COMMON at his death. A tenant in common's interest passes through their estate by will or intestacy. Marcus's will left "my interest in the investment property to my three children in equal shares." His three children each inherit one-third of Marcus's half interest — i.e., each child holds a one-sixth undivided share in the property. CURRENT OWNERSHIP: Sylvia holds a one-half undivided share (as tenant in common); Marcus's three children hold three one-sixth undivided shares (one-sixth each = collectively one-half).

CONCLUSION	The joint tenancy was SEVERED in 2020 by the written agreement (mutual agreement to partition — Williams v Hensman, Method 2) and again by Sylvia's 2022 mortgage (unilateral act — Jansen v Niels Estate, Method 1). Marcus held a tenancy in common at his death → his half interest passes by will to his three children (one-sixth each). Current title: Sylvia (one-half), Marcus's three children (one-sixth each, collectively one-half).

Part B — Rental Income Accounting

APPLICATION	Sylvia collected $48,000 in rent from tenants on the co-owned property in 2024

	and kept it all. As a co-owner (tenant in common), a co-owner who receives EXCLUSIVE PROFITS from the co-owned property must account to the other co-owners for their proportionate share. Marcus (now his estate/children) was entitled to one-half of all rental income from the property: $48,000 ÷ 2 = $24,000. Sylvia has retained $24,000 that should have been paid to Marcus or his estate. Marcus's estate (and now his children as beneficiaries) may claim $24,000 from Sylvia as accounting for co-owner profits.

Part C — Partition and Sale

Any co-owner (Sylvia or any of Marcus's three children) may apply to court for partition (physical division) or sale (forced sale, proceeds distributed proportionately) of the investment property. Courts generally prefer sale for commercial investment properties that cannot be practically divided. The proceeds would be distributed: 50% to Sylvia, and 50% to Marcus's estate (for his three children equally — one-sixth each).

QUESTION 8 OF 12 — SERVITUDES

Primary Topic	Servitudes — Easements, Restrictive Covenants, Positive Covenants
Secondary Topics	Re Ellenborough Park; Tulk v Moxhay; Durham CC v Amberwood; Barton v Raine; Harris v Flower
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

Lakeview Estates Ltd. ("LVL") developed a subdivision of 50 residential lots around a private lake. When selling the lots in the 1980s, LVL included in each deed the following provisions:

Clause A: "The purchaser covenants not to erect any structure of more than one storey on the lot."

Clause B: "The purchaser covenants to contribute $200 per year to the maintenance of the private road serving the subdivision."

Clause C: "The purchaser shall have the right to use the private lake and dock facilities for boating and swimming, appurtenant to the purchased lot."

LVL sold all 50 lots and then sold its remaining interest in the subdivision (including the lake and common areas) to Lakeview Community Corp. ("LCC").

SCENARIO A:

One lot owner, Dominic, recently built a two-storey extension on his cottage, in clear violation of Clause A. His neighbour Elena (another lot owner) wants to stop him.

SCENARIO B:

Victor has not paid his $200 annual contribution under Clause B for 5 years. The road maintenance fund is now deficient. LCC is seeking to enforce the contribution obligation against Victor's current property (Victor sold his lot to Farah, without mentioning Clause B).

SCENARIO C:

LCC has decided to restrict access to the lake to LCC members only and has blocked Lot 22 from accessing the dock. The current owner of Lot 22, Isabelle, claims she has a right to use the lake.

MODEL ANSWER — QUESTION 8

Scenario A — Clause A: Restrictive Covenant (8 marks)

RULE

Tulk v Moxhay [1848]: Restrictive covenant runs in equity to bind successors if: (1) NEGATIVE in substance; (2) made for the benefit of retained land; (3) intended to run; (4) the successor had notice. Berry v Indian Park Association 1999 ONCA: Under a building scheme, all lot owners can enforce covenants against each other.

APPLICATION

NEGATIVE IN SUBSTANCE: "Not to erect any structure of more than one storey" — this is a prohibition on building above a certain height. No expenditure is required to comply. Clearly NEGATIVE in substance. It RUNS.

MADE FOR THE BENEFIT OF RETAINED LAND: When LVL sold each lot with this covenant, LVL retained the remaining lots in the subdivision. The covenant was made for the benefit of all other lots — preserving the low-rise character protects the value and enjoyment of all surrounding lots. A BUILDING SCHEME exists: all 50 lots were sold subject to mutual covenants intended to benefit all lot owners. Berry v Indian Park Association 1999 ONCA: Under a building scheme, all lot owners can enforce the covenants against each other.

INTENDED TO RUN: The covenant was in every deed — clearly intended to bind all successors. NOTICE: Dominic purchased his lot with the covenant in the deed (registered). He had actual and registration notice.

CAN ELENA ENFORCE IT? Under the building scheme, Elena (as a lot owner in the same scheme) has the benefit of Clause A running to her lot. Elena may seek: (a) an injunction requiring Dominic to remove the second storey; (b) damages for any loss caused by the breach.

CONCLUSION

Clause A is a valid restrictive covenant running with the land under Tulk v Moxhay and Berry (building scheme). Elena may obtain an injunction requiring Dominic to remove the second storey.

Scenario B — Clause B: Positive Covenant (8 marks)

RULE

Durham Condominium Corporation No. 123 v Amberwood Investments 2002 ONCA: POSITIVE COVENANTS DO NOT RUN with freehold land in Canada to bind successors in title. The original covenantor remains personally liable under privity of contract, but successors are not bound. Benefit-burden principle (Halsall v Brizell): A person cannot take the benefit (use the road) while rejecting the associated burden (contribute to road maintenance).

APPLICATION

Clause B requires the lot owner to pay $200/year — an obligation to SPEND MONEY and take AFFIRMATIVE ACTION. This is a classic POSITIVE COVENANT. Under Durham, positive covenants do not run with freehold land in Canada. Farah, as a successor purchaser of Victor's lot, is NOT bound by Clause B — she has no contractual relationship with LCC. Victor (the original covenantor) remains PERSONALLY LIABLE for the $200/year obligation for as long as he was the lot owner. Victor is liable for the 5 years of unpaid contributions (5 × $200 = $1,000).

BENEFIT-BURDEN (Halsall v Brizell): Farah presumably uses the private road. If she takes the benefit (road access) associated with the burden (contribution to road maintenance), equity may prevent her from taking the benefit while rejecting the burden. This principle may require Farah to contribute going forward as a condition of using the private road.

CONCLUSION

Clause B is a POSITIVE COVENANT that DOES NOT RUN with the land to bind Farah (Durham). The 5 years of past unpaid contributions are Victor's personal liability under privity of contract ($1,000 from Victor). Going forward: the benefit-burden principle (Halsall v Brizell) may require Farah to contribute as a condition of using the private road. LCC should enforce the arrears claim against Victor personally.

Scenario C — Clause C: Easement to Use the Lake (9 marks)

RULE	Re Ellenborough Park [1956] UK CA: Four requirements for a valid easement: (1) dominant and servient tenements; (2) easement accommodates the dominant tenement; (3) different ownership; (4) capable of forming the subject matter of a grant. An easement cannot be held in gross — must be appurtenant to a dominant tenement.

APPLICATION	DOMINANT AND SERVIENT TENEMENTS: Each lot = dominant tenement; the lake and dock area = servient tenement held by LCC. The dual tenement structure exists. ACCOMMODATES THE DOMINANT TENEMENT: Access to the lake accommodates the residential lots — Re Ellenborough Park is directly analogous. The Court found that the right to use a communal garden accommodated the surrounding residential properties by enhancing their residential amenity. Similarly, access to a private lake and dock facilities is a genuine benefit to lakeside residential properties — it relates to the use and enjoyment of the land itself. DIFFERENT OWNERSHIP: The lots belong to individual owners; the lake belongs to LCC. CAPABLE OF FORMING THE SUBJECT MATTER OF A GRANT: A right to use a lake for boating and swimming is sufficiently definite — it specifies the activities permitted and the location. CAN LCC RESTRICT ISABELLE'S ACCESS? Because Isabelle's right to use the lake is an EASEMENT — a proprietary interest that runs with Lot 22 and binds the servient tenement regardless of who owns it — LCC cannot simply block her access. LCC's restriction constitutes an interference with Isabelle's easement. Isabelle may seek an injunction and damages.

CONCLUSION	Clause C creates a valid EASEMENT appurtenant to each lot (including Lot 22) under Re Ellenborough Park — all four requirements satisfied. Isabelle holds an easement to use the lake and dock for boating and swimming. LCC as servient owner is bound by this easement. LCC's categorical blocking of Lot 22's access constitutes interference with Isabelle's easement. Isabelle may seek: (a) an injunction; (b) damages for the period of exclusion.

QUESTION 9 OF 12 — POSSESSORY TITLE

Primary Topic	Possessory Title — Finders, Bailment, Gifts, Pre-Possessory Interest
Secondary Topics	Parker v British Airways; Popov v Hayashi; Punch v Savoy; Thomas v Times Book Co; The Pioneer Container
Difficulty	Medium
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

SCENARIO A:

A rare first-edition book was found by Jonah in the stacks of a public library. Jonah was a patron browsing the shelves. The book was clearly valuable but had no library markings. Jonah placed the book under his coat, intending to leave with it. Before he could exit, a library security guard stopped Jonah and took the book from him. The library now claims the book; Jonah claims it. The original owner has not come forward.

SCENARIO B:

Leila left her diamond ring at Precision Jewellers for resizing. While in the jeweller's possession, the ring disappeared. Precision Jewellers claims it was stolen from their safe overnight. They have no evidence of a break-in.

SCENARIO C:

Raymond's uncle, shortly before dying of a terminal illness, telephoned Raymond and said: "I'm leaving everything to you. I'm going to give you my vintage car collection — I want you to have them now, not in my will. The cars are in the garage at my farm. Here, consider this call your notice that they're yours." The uncle died two weeks later. The cars were still in the garage. The uncle's estate claims the cars were never validly gifted.

MODEL ANSWER — QUESTION 9

Scenario A — The Library Book (7 marks)

RULE	Parker v British Airways Board [1982] UK CA: A finder acquires title good against all except the true owner. The occupier of premises displaces the finder's right only if the occupier manifested a clear intention to control objects found on the premises AND actually exercised that control.

APPLICATION	Jonah found the book in the library stacks and established possession (picked it up, placed it under his coat with intent to keep). He acquired a finder's title good against all except the true owner. The library's claim depends on whether it manifested a clear intention to control all objects found on its premises and actually exercised that control. A public library is distinguishable from a controlled private environment. Unlike a clearly controlled commercial premises, a library's open stacks do not obviously put patrons on notice that the library is assertively controlling all items between the books. On the facts as given, no clear intention to control is evident — no posted policies, no staff actively collecting found materials. CONCLUSION: Jonah's finder's right likely prevails over the library's occupier claim unless the library can show it manifested a clear, prior intention to control

	objects in its stacks. The true owner (if identified) has the best claim against both.

Scenario B — The Missing Ring (7 marks)

RULE	Punch v Savoy's Jewellers 1986 ONCA: Commercial bailment for reward = ordinary care standard. Once the bailor establishes delivery and loss, the burden SHIFTS to the bailee to prove the loss occurred without negligence.

APPLICATION	Leila's delivery of the ring to Precision Jewellers for resizing creates a MUTUAL BENEFIT BAILMENT — the jeweller benefits commercially (fee for service); Leila benefits (the service performed). Standard of care: ordinary (reasonable) care. Leila has established: (1) delivery of the ring; and (2) the ring has not been returned. Under Punch v Savoy, the burden NOW SHIFTS to Precision Jewellers to prove the loss occurred without its negligence. Precision Jewellers claims theft from the safe with no evidence of a break-in. The absence of evidence of a break-in does not explain how the ring disappeared — it is consistent with an inside job or simply an unexplained disappearance. The jeweller cannot discharge the burden by saying "we don't know what happened." Precision Jewellers has not discharged the burden. Leila is entitled to the ring's value from Precision Jewellers.

Scenario C — The Uncle's Telephone Gift (6 marks)

RULE	Thomas v Times Book Company [1966] UK: Three requirements for a valid gift — donative intent; delivery; acceptance. Symbolic delivery is available where actual delivery is impractical. A gift is incomplete without delivery.

APPLICATION	DONATIVE INTENT: The uncle's telephone statement ("I want you to have them now, not in my will") is unambiguous — he clearly intended a present, irrevocable gift. Donative intent is strongly established. DELIVERY — THE CRITICAL ISSUE: The cars are "in the garage at the farm" — the uncle did not hand Raymond the keys, the car registration documents, or any document of title. He said "consider this call your notice that they're yours" — a statement that the cars are now Raymond's, without any physical delivery of the cars or any symbol of dominion. ACTUAL DELIVERY: not made. CONSTRUCTIVE DELIVERY (handing keys or documents): not made. SYMBOLIC DELIVERY (sending formal letter of gift with car titles): not made. The telephone call alone — without delivery of any physical item representing dominion — does not constitute delivery. Would symbolic delivery have been appropriate here? Actual delivery of a vintage car collection may be impractical by telephone. Had the uncle given Raymond the keys or sent the registration papers, symbolic delivery might have completed the gift. But nothing tangible passed.

CONCLUSION	The gift FAILS for want of delivery. The uncle's statement of intent — however clear — does not complete the gift without some form of delivery (actual, constructive, or symbolic). The vintage cars remain part of the uncle's estate. Raymond's remedy (if any) is as a residuary beneficiary under the uncle's will or by intestacy — not as the owner of a completed inter vivos gift.

QUESTION 10 OF 12 — CONDITIONAL TRANSFERS

Primary Topic	Conditional Transfers — Determinable/Conditional, RAP, Public Policy
Secondary Topics	H.J. Hayes v Meade; Ottawa v Clublink; Leonard Foundation; Blackburn v McCallum
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Gerald Whitmore died in 2024. His will contained the following provisions:

Clause 3: "My rural estate, Cedar Hill, shall go to my nephew Philippe for as long as the land is used for agricultural purposes. If Philippe ceases to use it for agriculture, the land shall go to the Cedar Hill Agricultural Preservation Society."

Clause 5: "My urban condo at 200 Bay Street shall go to my former business partner Helene, on condition that she shall not at any time sell or transfer the condo to any person of a nationality other than Canadian. If she attempts to do so, the condo shall revert to my estate."

Clause 7: "The residue of my estate shall be held on trust to pay income annually to the first child of my nephew Philippe who qualifies as a medical doctor and, when that child dies, the trust shall terminate and the capital shall be paid to the Red Cross."

YOUR TASK

For each clause, identify the nature of the interest, its validity (including the RAP and public policy where relevant), and the current state of title.

MODEL ANSWER — QUESTION 10

Clause 3 — Cedar Hill

APPLICATION	DETERMINABLE vs CONDITIONAL: "For as long as the land is used for agricultural purposes" — the words "for as long as" are TEMPORAL LIMITING WORDS, creating a DETERMINABLE FEE SIMPLE. Philippe's estate continues only while the land is used for agriculture; it ends automatically if agricultural use ceases. The Preservation Society's interest is a gift over following a determinable estate (executory interest). CERTAINTY (H.J. Hayes v Meade): Is "agricultural purposes" sufficiently certain? "Agricultural purposes" has a conventional and well-understood meaning in property law and land use planning contexts — farming, cultivating crops, grazing livestock, market gardening. The condition is likely sufficiently certain. OTTAWA v CLUBLINK 2021 ONCA: A grantor's possibility of reverter following a determinable fee simple remains enforceable by the grantor's successors in title when the limiting condition is breached. The Preservation Society holds an executory interest — RAP must be analysed: Philippe may cease agricultural use at any point during his life (a life in being). The gift to the Society must vest within the same window. VALID under RAP.

CONCLUSION	Philippe holds a DETERMINABLE FEE SIMPLE in Cedar Hill, continuing so long

	as he uses it for agricultural purposes. The Cedar Hill Agricultural Preservation Society holds an executory interest that vests automatically if Philippe ceases agricultural use. The condition is sufficiently certain (H.J. Hayes). RAP: valid (must resolve within Philippe's lifetime, a life in being).

Clause 5 — The Condominium

APPLICATION	RESTRAINT ON ALIENATION (Blackburn v McCallum): A total prohibition on alienation of a fee simple is void. A partial restraint may be valid. The condition restricts sale to Canadian nationals — technically a partial restraint, not a complete prohibition. Helene may sell to any Canadian national. PUBLIC POLICY (Spence v BMO Trust 2016 ONCA; Leonard Foundation 1990 ONCA): Conditions based on the nationality or national origin of potential purchasers may be analogous to conditions based on race or ethnicity — categories that courts have found contrary to public policy. Spence and Leonard Foundation voided conditions based on racial and ethnic identity as contrary to fundamental Canadian values. A restriction on selling to non-Canadian nationals is based on national origin — a characteristic analogous to those protected under human rights legislation. ARGUMENT AGAINST INVALIDITY: Nationality is a legal status rather than an immutable characteristic. Not all restrictions based on nationality have been found contrary to public policy. Discuss both positions. CONSEQUENCE IF VOID (condition subsequent): Carlos — here Helene — takes the condo free of the void condition in fee simple absolute.

CONCLUSION	Clause 5: The condition restricting sale to Canadian nationals is likely VOID on public policy grounds — analogous to the racial/national conditions voided in Spence v BMO Trust and Leonard Foundation. A condition based on the national origin of purchasers is contrary to fundamental Canadian values of non-discrimination. Because this is a condition SUBSEQUENT, and the void condition is struck, Helene takes the condo in FEE SIMPLE ABSOLUTE — free of the void condition.

Clause 7 — The Residue Trust

APPLICATION	The trust directs income to "the first child of Philippe who qualifies as a medical doctor." This is a CONTINGENT INTEREST — vests only when a qualifying child is identified. MEASURING LIVES: Philippe is alive at the testator's death (a life in being). WORST CASE TEST: Philippe could have a child born AFTER the testator's death — an afterborn child who is not a life in being. That afterborn child might qualify as a doctor at age 28. If Philippe dies immediately after the testator, the afterborn child is born immediately after. Can that child qualify as a doctor within 21 years of Philippe's death? No — medical qualification typically takes more than 21 years from birth (childhood + undergraduate + medical school). This is a real possibility — it is POSSIBLE that the interest vests more than 21 years after all lives in being die. VOID under the RAP. The entire trust gift is VOID. The capital falls back into the estate and passes under any other fallback provision in the will or by intestacy.

CONCLUSION	Clause 7 VIOLATES THE RAP. The interest vests when Philippe's child qualifies as a medical doctor — but an afterborn child (not a life in being) might not qualify within lives in being + 21 years. The worst case (afterborn child born after Philippe dies; qualifying as a doctor 28+ years later) extends beyond the perpetuity period. The trust interest is VOID. The residue falls back to the estate.

QUESTION 11 OF 12 — CONSTRUCTIVE TAKING + LATIN MAXIM + FIXTURES

Primary Topic	Constructive Taking + Latin Maxim + Fixtures Multi-Issue
Secondary Topics	Annapolis Group 2022 SCC 36; Didow v Alberta Power; La Salle Recreations; cuius est solum
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Ridgecrest Properties Inc. ("Ridgecrest") owns a parcel of land in suburban Vancouver. The land is zoned "Agricultural Reserve" by the Regional District, which prohibits commercial and residential development. Ridgecrest purchased the land ten years ago specifically to develop a commercial distribution centre. The Regional District has refused all of Ridgecrest's applications to rezone or permit any commercial use. A neighbouring land — almost identical in character — was recently rezoned at the Regional District's initiative for a public composting facility. The Regional District benefits from having the composting facility adjacent to the agricultural zone.

Ridgecrest has also discovered that a Regional District utility cable runs through the airspace directly above the parcel at a height of approximately 8 metres, having been installed 20 years ago without Ridgecrest's predecessor's consent. The cable services only properties in the surrounding area, not Ridgecrest's parcel.

In addition, Ridgecrest had installed a large industrial HVAC unit on the roof of a warehouse it built on an adjacent parcel. The HVAC unit sits in a reinforced steel frame bolted to the roof structure, with ductwork integrated into the building. Ridgecrest recently sold that adjacent warehouse parcel to a buyer. The buyer argues the HVAC unit is a fixture and passed with the sale; Ridgecrest argues it retained the HVAC unit as a chattel.

MODEL ANSWER — QUESTION 11

Issue 1 — Constructive Taking (8 marks)

RULE	Annapolis Group Inc v Halifax Regional Municipality 2022 SCC 36 (5-4 majority, Wagner CJ): Two-part test: (1) the government acquired a beneficial interest (advantage) from its regulation of the property; and (2) the regulation removed ALL REASONABLE USES of the property. "Beneficial interest" = an ADVANTAGE accruing to the state — no proprietary acquisition required. The intention of the public authority is relevant.

APPLICATION	ELEMENT 1 — ADVANTAGE TO THE REGIONAL DISTRICT: The Regional District rezoned a neighbouring, comparable parcel at its own initiative for a public composting facility. The Agricultural Reserve zoning on Ridgecrest's land maintains the character of the surrounding agricultural zone, enhancing the composting facility's public use and viability. The Regional District benefits from having preserved agricultural land adjacent to its composting initiative — the agricultural reserve designation serves the District's own public infrastructure purposes. This is closer to Annapolis than to CPR 2006 — the District is obtaining

	an "advantage" from maintaining the agricultural reserve on Ridgecrest's land. ELEMENT 2 — ALL REASONABLE USES REMOVED: Agricultural Reserve zoning prohibits commercial and residential development. All of Ridgecrest's commercially viable uses (a distribution centre) are prohibited. Agricultural use may technically remain — but if Ridgecrest purchased the land specifically for commercial development and the land is unsuitable for agricultural production at scale, the agricultural use may not constitute a "reasonable" use in the circumstances. AUTHORITY'S INTENTION (Annapolis factor): The District's initiative rezoning the adjacent parcel for a composting facility suggests its policy choices were partly motivated by the advantage it derives from maintaining Ridgecrest's land in its current state.

CONCLUSION	Ridgecrest has arguable grounds for a constructive taking claim (Annapolis). Both elements appear potentially met — the court would allow the claim to proceed to trial. Ridgecrest should claim constructive taking and compensation.

Issue 2 — Utility Cable in Airspace (6 marks)

APPLICATION	The Regional District's utility cable runs through Ridgecrest's airspace at 8 metres, installed 20 years ago without consent. Under the Latin maxim (cuius est solum), Ridgecrest's ownership extends upward through the airspace above the land. Didow v Alberta Power 1988 ABCA: Power lines crossing airspace above land = trespass. The landowner has rights in the airspace that extend sufficiently above the land that unauthorised installation of utility cables constitutes trespass. At 8 metres — within the zone of normal use of the land — this is clearly within the protected airspace. Ridgecrest's predecessor did not consent. REMEDIES: Ridgecrest may: (a) seek an injunction requiring the District to remove the cable; (b) claim damages for the historic trespass to its airspace; (c) negotiate a formal licence or easement with compensation. The 20-year installation raises questions about laches (delay in asserting rights) — though Ridgecrest only recently discovered it.

Issue 3 — HVAC Unit: Fixture or Chattel? (6 marks)

APPLICATION	DEGREE OF ANNEXATION: The HVAC unit "sits in a reinforced steel frame bolted to the roof structure, with ductwork integrated into the building." Bolted to the roof structure + ductwork integrated into the building = high degree of physical annexation. The first part of the test strongly supports fixture status. PURPOSE OF ANNEXATION: A large industrial HVAC unit with integrated ductwork is not a moveable appliance — it is the building's primary climate control system, permanently integrated into the structure's heating and cooling infrastructure. The purpose of the reinforced steel frame, the bolting, and the integrated ductwork was to make the HVAC unit a functional, permanent part of the building's mechanical systems. Unlike La Salle Recreations (laundry machines — purpose was to use them as laundry equipment, not to permanently improve the building), an integrated HVAC system is part of the building's essential mechanical infrastructure. CONCLUSION: The HVAC unit is a FIXTURE. Ridgecrest's sale of the warehouse included the HVAC unit as part of the real property. Ridgecrest cannot now claim it as a retained chattel — by selling the property without expressly reserving the

	HVAC unit, Ridgecrest conveyed it as part of the fixtures.

QUESTION 12 OF 12 — FULL EXAM SIMULATION

Primary Topic	Full Exam Simulation — Will + Boundaries + Equitable Interests + Priorities
Secondary Topics	All major topics integrated; structured as a complete exam simulation
Difficulty	Very Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Herbert Nakamura died in January 2025. His will provides:

Clause 2:

"My farm, Greenfield, shall go to my daughter Yuki for life, then to Yuki's children who survive her, in equal shares. Yuki is to maintain the fences and pay the farm's property taxes."

Clause 4:

"My lakeshore lot, Bayview, shall go to my son Kenji, provided he completes a university degree. If he does not obtain a degree within five years of my death, the lot shall go to my friend Dora."

Additionally, you are told: (a) Herbert's wife Michiko predeceased him. They had purchased Greenfield together in 1990 as joint tenants. Herbert continued to farm Greenfield alone after Michiko's death. (b) Greenfield is bounded on the west by a creek. Over the past 20 years, the creek has gradually shifted approximately 40 metres westward. (c) Yuki and her late husband bought a house together as joint tenants in 2008. Yuki's husband died in 2022. (d) An underground utility line installed by the regional authority in 2010 runs through Greenfield's subsurface at approximately 2 metres depth, without consent from Herbert or any predecessor. (e) On Greenfield's south boundary, the adjoining landowner has been operating a commercial greenhouse that extends 3 metres onto what a recent survey has confirmed is Greenfield's land, for the past 12 years.

Kenji is currently 24 years old and is in his second year of university. Yuki has two children: Leo (age 19) and Emma (age 15).

YOUR TASK

Advise all parties on all of their rights. Apply the standard exam assumptions. Identify uncertainty on the facts and in the law. Consider all plausible arguments and outcomes.

EXAMINER'S GUIDE

COMPREHENSIVE MULTI-ISSUE — EXAMINER'S GUIDE:

(1) Will Clause 2: Yuki = life estate (maintenance obligation = contrary intention per Re Taylor). Remainder to Yuki's children who survive her = contingent remainder (condition: survive Yuki). RAP: Leo and Emma are lives in being — but Yuki is alive, could have more children (afterborn = not lives in being). BUT: the children must SURVIVE YUKI. This condition resolves at Yuki's death — within Yuki's own life (a life in being). Therefore the interest must vest (or fail) at Yuki's death — WITHIN A LIFE IN BEING. VALID.

(2) Clause 4: Kenji must complete a degree within 5 years of Herbert's death (by January 2030). Kenji (24, second year) is likely to satisfy the condition. RAP: Kenji is alive (life in being). 5-year window = well within his lifetime. Both Kenji's interest and Dora's alternative interest are VALID under the RAP.

(3) Michiko's joint tenancy: Michiko and Herbert purchased as joint tenants. Michiko predeceased

Herbert. No facts of severance — right of survivorship operated at Michiko's death → Herbert took sole ownership of Greenfield. He can devise it by his will.

(4) Greenfield boundary — creek shift: accretion (20 years, gradual) → Herbert's (now estate's) boundary followed the creek westward 40 metres. Estate owns the exposed creek bed.

(5) Yuki's house: joint tenancy with husband. Husband died in 2022 [NOTE: This is the 2022 date — Yuki's husband, NOT Michiko. Michiko's death year is not stated in the facts. Model answers must not attribute 2022 to Michiko's death.] No facts of severance → right of survivorship operated → Yuki took the whole. Yuki owns the house solely.

(6) Underground utility line (2 metres depth): cuius est solum — subsurface ownership → trespass. Same Didow principle applies below ground. Authority installed without consent in 2010 → now 15 years. 10-year adverse possession period elapsed — but adverse possession requires open, notorious, continuous possession with animus possidendi; a buried utility line likely does not satisfy possession requirements. Not adverse possession — ongoing trespass. Estate may seek compensation + formal easement.

(7) Neighbour's greenhouse encroachment (3 metres for 12 years): trespass to land. Adverse possession period = 10 years (exam assumption). 12 years = satisfied at common law. BUT: in Torrens provinces, adverse possession generally cannot succeed against registered title. Identify this as a critical uncertainty. If adverse possession applies: neighbour may have acquired title to the 3-metre strip. If Torrens: no adverse possession; estate may recover the land + damages.

MODEL ANSWER — QUESTION 12

Michiko's Joint Tenancy — Who Owns Greenfield? (3 marks)

Herbert and Michiko purchased Greenfield as joint tenants in 1990 — all four unities (PITT) were present. There is no evidence of any severance before Michiko's death. Without severance, the right of survivorship operated at Michiko's death — Herbert took the entirety of Greenfield as the surviving joint tenant. Greenfield did not form part of Michiko's estate. Herbert could therefore devise all of Greenfield by his will.

Clause 2 — Yuki's Life Estate and the Children's Remainder (8 marks)

APPLICATION	YUKI'S INTEREST: The maintenance obligation ("shall maintain the fences and pay the farm's property taxes") is language inconsistent with fee simple ownership — it is the kind of specific ongoing obligation associated with a life estate (Re Taylor). Reading the will as a whole, the direction that Greenfield then passes to Yuki's surviving children confirms that Yuki was intended to receive only a life estate, not a fee simple. Yuki holds a LIFE ESTATE in Greenfield with an express obligation to maintain fences and pay taxes — she is liable for permissive waste if she fails to do so. REMAINDER — RAP ANALYSIS: Leo (19) and Emma (15) — Yuki's current children — hold CONTINGENT REMAINDERS contingent on surviving Yuki. The contingent remainder must vest, if at all, within the perpetuity period. The remainder vests AT YUKI'S DEATH in whoever of Yuki's children then survive her. Yuki is herself a LIFE IN BEING at Herbert's death. The interest vests at Yuki's death — within a life in being. All of Yuki's children (including any afterborn) must either survive Yuki or not — this resolves at Yuki's death. VALID under the RAP.

Clause 4 — Kenji's Conditional Interest and Dora's Gift Over (5 marks)

APPLICATION	Kenji must "complete a university degree" within 5 years of Herbert's death — by January 2030. This is a CONDITION PRECEDENT. Kenji (24, second year) is likely to satisfy the condition within 5 years. RAP: Kenji is alive (life in being). The 5-year window is well within his lifetime. Both Kenji's interest and Dora's alternative

	contingent interest are VALID under the RAP. Current state: Kenji holds a contingent interest; Dora holds an alternative contingent remainder. The estate holds Bayview in the interim.

Yuki's House — Joint Tenancy on Husband's Death (2 marks)

Yuki and her late husband held the house as joint tenants. No facts indicate any severance before the husband's death in 2022. The right of survivorship operated — Yuki now owns the entire house as sole fee simple owner. The husband's interest did not pass through his estate. [NOTE: The 2022 date refers to Yuki's husband's death — not to Michiko's death. Michiko's death year is not stated in the facts.]

Greenfield Boundaries — Creek Accretion (3 marks)

The creek has shifted gradually westward over 20 years — approximately 40 metres. This is gradual and imperceptible movement from day to day (accretion — Blewman v Wilkinson). Herbert's (now the estate's) western boundary followed the creek — the estate has title to the 40-metre strip of formerly submerged creek bed. This expanded land forms part of Greenfield and passes under Clause 2 (Yuki's life estate, then to surviving children). Yuki gains the benefit of the larger Greenfield during her life estate.

Underground Utility Line — Subsurface Trespass (4 marks)

APPLICATION	Under the Latin maxim (cuius est solum), Herbert's (the estate's) ownership of Greenfield extends into the subsurface. The regional authority installed a utility line at 2 metres depth without consent in 2010 — this constitutes trespass to the subsurface of Greenfield (the same principle applied in Didow v Alberta Power 1988 ABCA to airspace applies equally below ground). 15 years have passed since installation. The exam assumption is that adverse possession = 10 years. However, adverse possession generally requires open, notorious, and continuous possession with animus possidendi — a buried utility line does not satisfy the possession requirements for adverse possession. Moreover, in Torrens provinces, adverse possession cannot succeed against registered title. The better view: this is an ongoing trespass, not adverse possession. The estate may seek compensation for the unauthorised use and a formal easement with appropriate compensation going forward.

Neighbour's Greenhouse Encroachment (5 marks)

APPLICATION	The greenhouse encroaches 3 metres onto Greenfield for 12 years. At common law, the neighbour has been in open, notorious, continuous possession of the 3-metre strip for 12 years — exceeding the 10-year adverse possession period (exam assumption). If adverse possession law applies in a deeds registration province, the neighbour may have acquired title to the 3-metre strip. TORRENS PROVINCE UNCERTAINTY: In a Torrens land titles province, adverse possession generally cannot succeed against registered title — the indefeasibility principle protects the registered owner. If Greenfield is registered under Torrens, the neighbour's 12 years of occupation does not give them title regardless of the duration. IDENTIFY THIS AS A CRITICAL UNCERTAINTY. IN A DEEDS REGISTRATION PROVINCE: The neighbour's 12-year possession has extinguished the limitation period for the owner's action to recover the land. The neighbour may have acquired possessory title. ONGOING TRESPASS REMEDIES (if adverse possession fails): The estate may seek an injunction requiring removal of the greenhouse extension from Greenfield's 3-metre strip,

	plus damages for the trespass (subject to any applicable limitation period for damages claims).

CONCLUSION	MICHIKO'S JOINT TENANCY: Herbert acquired full Greenfield by survivorship. CLAUSE 2: Yuki holds a life estate (Re Taylor — maintenance obligation shows contrary intention); Leo and Emma hold contingent remainders (survive Yuki — vests at Yuki's death = within a life in being: VALID RAP). CLAUSE 4: Kenji holds a contingent interest (degree within 5 years); Dora holds alternative contingent remainder — both VALID under RAP. YUKI'S HOUSE: Yuki owns outright by survivorship (2022 = husband's death year; Michiko's death year is unstated in the facts). ACCRETION: Estate owns 40-metre strip (Blewman). UTILITY LINE: Ongoing subsurface trespass (cuius est solum); not adverse possession; authority owes compensation + requires formal easement. GREENHOUSE: 12-year encroachment may constitute adverse possession at common law — but NOT under Torrens (registered title cannot be defeated by adverse possession). Estate may recover the land + damages depending on registration system.